

STEVENS, J., concurring in judgment

JUSTICE STEVENS, with whom JUSTICE SOUTER, JUSTICE GINSBURG, and JUSTICE BREYER join, concurring in the judgment.

The disputed issue of fact in this case is whether political considerations or racial considerations provide the “primary” explanation for the seemingly irregular configuration of North Carolina’s Twelfth Congressional District. The Court concludes that evidence submitted to the District Court on behalf of the State made it inappropriate for that Court to grant appellees’ motion for summary judgment. I agree with that conclusion, but write separately to emphasize the importance of two undisputed matters of fact that are firmly established by the historical record and confirmed by the record in this case.

First, bizarre configuration is the traditional hallmark of the political gerrymander. This obvious proposition is supported by the work product of Elbridge Gerry, by the “swan” designed by New Jersey Republicans in 1982, see *Karcher v. Daggett*, 462 U. S. 725, 744, 762–763 (1983), and by the Indiana plan reviewed in *Davis v. Bandemer*, 478 U. S. 109, 183, 185 (1986). As we learned in *Gomillion v. Lightfoot*, 364 U. S. 339 (1960), a racial gerrymander may have an equally “uncouth” shape. See *id.*, at 340, 348. Thus, the shape of the congressional district at issue in this case provides strong evidence that either political or racial factors motivated its architects, but sheds no light on the question of which set of factors was more responsible for subordinating any of the State’s “traditional” districting principles.¹

¹ I include the last phrase because the Court has held that a state legislature may make race-based districting decisions so long as those decisions do not subordinate (to some uncertain degree) “‘traditional . . . districting principles.’” See *Shaw v. Hunt*, 517 U. S. 899, 907 (1996); *Miller v. Johnson*, 515 U. S. 900, 916 (1995) (holding that racial considerations are subject to strict scrutiny when they subordinate “traditional race-neutral districting principles”); *id.*, at 928 (O’CONNOR, J., concurring) (“To invoke strict